

PLD 1988 SC 416: BENAZIR BHUTTO V. FEDERATION OF PAKISTAN

GOVERNMENT OF PAKISTAN • SUPREME COURT OF PAKISTAN • FEDERAL

Document sc_judgment_pld_1988_sc_416_benazir_bhutto	ID:	Enactment Date: 1988-06-20
Status: IN_FORCE		Official Source: https://www.supremecourt.gov.pk/judgments/sc_judgment_pld_1988_sc_416_benazir_bhutto
Subject Category: case_law;supreme_court;constitutional;political_parties;article_17		Version: reported-judgment-pld

PREAMBLE: Landmark Judgment of the Supreme Court of Pakistan: Held that political parties are fundamental to democracy and striking down restrictions on party-based elections under Article 17.

Paragraph 1: Ratio Decidendi and Legal Principle

■■■■■■ ■■■■ ■■ ■■■■■■ ■■■■ ■ ■■■■■■: Held that political parties are fundamental to democracy and striking down restrictions on party-based elections under Article 17.

Held that political parties are fundamental to democracy and striking down restrictions on party-based elections under Article 17.

Paragraph 2: Binding Precedent under Article 189

189

Under Article 189 of the Constitution, any decision of the Supreme Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other Courts in Pakistan.